

2ND SCH.
—cont.

Session and Chapter.	Short Title.	Extent of Repeal.
7 Edw. 7. c. 18	The Married Women's Property Act, 1907.	In section three the words "which is by virtue of the " Married Women's Property Act, 1882, made " her separate property."
1 & 2 Geo. 5. c. 46.	The Copyright Act, 1911.	In section sixteen, in subsection (4) thereof, the word "separate."
4 & 5 Geo. 5. c. 59.	The Bankruptcy Act, 1914.	In section fifty-two, the word "separate"; and section one hundred and twenty-five.
6 & 7 Geo. 5. c. 50.	The Larceny Act, 1916.	In section thirty-six, in subsection (1) thereof the word "separate."
20 & 21 Geo. 5. c. 17	The Poor Law Act, 1930	In section fourteen, in subsection (4) thereof, the word "separate."

CHAPTER 31.

An Act to make provision for the application of the enactments relating to diseases of animals as respects poultry, to amend those enactments, to provide for the regulation of the manufacture, sale and importation of certain therapeutic substances capable of being used for veterinary purposes, to extend Part I of the Ministry of Agriculture and Fisheries Act, 1919, to Scotland; and for purposes connected with the matters aforesaid. [2nd August 1935.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present

Parliament assembled, and by the authority of the same, as follows :—

PART I.

APPLICATION OF DISEASES OF ANIMALS ACTS TO POULTRY AND AMENDMENT OF THOSE ACTS.

Application to Poultry.

1.—(1) Subject to the provisions of this Act, the Diseases of Animals Acts, 1894 to 1927, shall have effect in relation to poultry as they have effect in relation to animals. General application of Acts to poultry.

(2) In this Act unless the context otherwise requires—

(a) the expression “poultry” means birds of the following species, that is to say, domestic fowls, turkeys, geese, ducks, guinea fowls and pigeons; and

(b) the expression “disease” means, in relation to poultry, fowl pest in any of its forms including Newcastle disease and fowl plague;

and, for the purposes of the application of the Diseases of Animals Acts, 1894 to 1927, to poultry, the definitions of “animals” and of “disease” contained in section fifty-nine of the principal Act shall not have effect, but references in the said Acts to animals shall be construed as references to poultry as defined in this subsection and references therein to disease shall be construed as references to disease as so defined :

Provided that the Minister may, for all or any of the purposes of this Act and for the purposes of the application of all or any of the provisions of the Diseases of Animals Acts, 1894 to 1927, to poultry, by order extend the definitions of “poultry” and of “disease” contained in this subsection so that the same shall, for those purposes or any of them, comprise any species of bird and any disease of birds respectively, in addition to the species and diseases mentioned in the said definitions.

2.—(1) The Minister may by order prescribe and regulate the separation of diseased poultry from poultry Separation of diseased poultry and notification.

PART I.
—*cont.*

not affected with disease and the notification of disease in, or illness of, poultry.

(2) Section four of the principal Act (which relates to the separation of diseased animals and notification of disease) shall not have effect in relation to poultry.

Slaughter of
poultry in
case of
disease
and com-
pensation.

3.—(1) The Minister may, if he thinks fit, cause to be slaughtered—

(a) any diseased or suspected poultry; or

(b) any poultry which are or have been in the same field, pen, shed or other place, or otherwise in contact with diseased poultry or which appear to the Minister to have been in any way exposed to the infection of disease.

(2) Subject to the provisions of this Part of this Act with respect to birds slaughtered in an imported poultry quarantine station, an approved landing place or an export quarantine station, the Minister shall, for poultry, other than diseased poultry, slaughtered under this section pay compensation, which shall be the value of the bird immediately before it was slaughtered.

(3) The Minister may by order prescribe the payment of compensation in accordance with a scale approved by the Treasury for diseased poultry slaughtered under this section, being poultry affected with a disease (other than fowl pest in any of its forms, including Newcastle disease and fowl plague) to which the definition of disease is for the purposes of this section extended by an order.

(4) For the purposes of the execution of this section, the Minister may employ such additional inspectors, valuers and other persons and at such remuneration, and may incur such expenses as, subject to the sanction of the Treasury, the Minister thinks necessary.

(5) Any sum received by the Minister on the sale of carcasses of poultry slaughtered under this section (after deducting any amount payable thereout under subsection (3) of section twenty of the principal Act as excess to the owners of the poultry) shall be paid into the Cattle Pleuro-Pneumonia Account for Great Britain.

4.—(1) The power to make orders conferred on the Minister by section thirty of the principal Act shall include power to make, for the purpose of preventing the introduction or spreading of disease, orders—

(a) for prohibiting the importation or bringing into Great Britain of poultry, or for regulating the importation or bringing into Great Britain of poultry, whether by defining quarantine stations for the reception of poultry and applying any of the provisions of Part II of the Third Schedule to the principal Act or otherwise; and

(b) for prohibiting or regulating the importation or bringing into Great Britain of poultry eggs intended for hatching, or the use for hatching of poultry eggs imported or brought into Great Britain.

(2) The following enactments relating to the importation or bringing into Great Britain of animals shall not have effect in relation to poultry, that is to say, sections twenty-four, twenty-five, twenty-seven and twenty-eight of the principal Act, section two of the Importation of Animals Act, 1922 (Session 2), and section three of the Diseases of Animals Act, 1927.

(3) Section six of the Importation of Animals Act, 1922 (Session 2), which provides for the charging of fees, not exceeding as respects any one animal the sum of sixpence, to meet the expenses of the examination of imported animals by veterinary inspectors, shall, in the application thereof to poultry, have effect with the substitution of a reference to a sum of one penny as respects any one bird for the reference to sixpence as respects any one animal.

5.—(1) The Minister may by order prescribe and regulate the cleansing and disinfection of receptacles or vehicles used for the conveyance or exposure for sale of poultry.

(2) The Minister may make orders for protecting poultry from unnecessary suffering in connection with their exposure for sale and their disposal after sale.

(3) For the purpose of enforcing any order for protecting poultry from unnecessary suffering, an

PART I.

—*cont.*

Control of
import of
poultry and
eggs.

13 Geo. 5.
c. 5.

17 & 18

Geo. 5. c. 13.

Cleansing,
disinfection,
and
protection
from un-
necessary
suffering,
of poultry.

PART I.
—*cont.*

inspector may examine poultry in any circumstances to which the order relates and any receptacle or vehicle used for their conveyance or exposure for sale, and may enter any premises or vessel in which he has reasonable ground for supposing that there are poultry exposed for sale, or in course of conveyance, or packed for conveyance or exposure for sale.

1 & 2 Geo. 5.
c. 11.

(4) The Poultry Act, 1911, shall cease to have effect :

Provided that nothing in this repeal shall affect any order made under the said Act, but any such order shall have effect as if it had been made under section twenty-two of the principal Act, and may be amended, varied, repealed, revoked or enforced accordingly.

Power to
enter
premises
where
poultry
kept.

6. An inspector of the Ministry and, if so authorised by an order of the Minister, an inspector of a local authority may at any time enter any pen, shed, land or other place in which he has reasonable grounds for supposing that poultry are or have been kept, for the purpose of ascertaining whether disease exists or has existed therein.

Amendments of Diseases of Animals Acts.

Power of
the Minister
to provide
or approve
export
quarantine
stations.

7.—(1) For the purpose of preventing the conveyance of disease by animals or poultry exported from Great Britain, the Minister may, with the consent of the Treasury, provide facilities for the examination of animals and poultry intended for export and provide or approve one or more quarantine stations for the reception, isolation and examination of such animals and poultry.

A quarantine station so provided or approved is in this Part of this Act referred to as an “export quarantine station.”

(2) For the purpose of defraying the costs and expenses incurred by him in the execution of this section or any part thereof, the Minister may charge in respect of the examination of animals and poultry intended for export and the issue of certificates in relation thereto, the user of an export quarantine station, and the reception of animals and poultry thereat, such fees as may be approved by the Treasury. Any fees so charged shall be paid to the Minister on demand and, if so required

by the Minister, in advance or before the animals or poultry are moved from the export quarantine station.

PART I.
—*cont.*

8. For the purpose of preventing the spread of disease, the Minister may cause to be treated with serum or vaccine, or with both serum and vaccine, any animal or bird which has been in contact with a diseased animal or bird or which appears to the Minister to be or to have been in any way exposed to the infection of disease.

Treatment
with serum
or vaccine.

9. Compensation shall not be payable under the Diseases of Animals Acts, 1894 to 1927, or under this Act, in respect of—

Compensa-
tion not to
be paid for
slaughter
on import
or export.

- (a) any imported animal or bird which is, by reason of its being diseased or suspected, or of its having been exposed to the infection of any disease, slaughtered in an imported animals or poultry quarantine station, an imported animals wharf or an approved landing place; or
- (b) any animal or bird intended for export which is, by reason of any such matter as aforesaid, slaughtered in an export quarantine station.

Expenses.

10.—(1) Any costs and expenses incurred by the Minister—

Expenses of
Part I.

- (a) in the execution of section three of this Act or of any order prescribing the payment of compensation for poultry slaughtered under that section;
- (b) in the execution of section eight of this Act; or
- (c) in respect of such measures under the Diseases of Animals Acts 1894 to 1927 or this Part of this Act as may seem to the Minister necessary for preventing the spread of disease among poultry;

shall be paid by the Minister out of the money standing to the credit of the Cattle Pleuro-Pneumonia Account for Great Britain.

(2) Subparagraph (1) of paragraph 1 of the Third Schedule to the Local Government Act, 1929, (which provides for the payment out of moneys provided by Parliament of any sum by which the money standing to the credit of the Cattle Pleuro-Pneumonia Account for

19 & 20
Geo. 5. c. 17.

PART I. Great Britain is insufficient to defray the costs and
 —*cont.* expenses of the Diseases of Animals Acts, 1894 to 1927) shall have effect as if the reference therein to the costs and expenses of those Acts included a reference to the costs and expenses made payable out of the said account by the last foregoing subsection.

(3) Subject to the foregoing provisions of this Part of this Act, any costs and expenses incurred by the Minister in the execution of this Part of this Act, or in the execution as respects poultry of the Diseases of Animals Acts, 1894 to 1927, shall be defrayed out of moneys provided by Parliament.

PART II.

REGULATION OF MANUFACTURE &C. OF VETERINARY THERAPEUTIC SUBSTANCES.

Substances
to which
Part II
applies.

11.—(1) Subject to the provisions of subsection (2) of this section, this Part of this Act shall apply to the therapeutic substances specified in the First Schedule to this Act and to any other therapeutic substances capable of being used for veterinary purposes which may from time to time be added to that Schedule as being substances the purity or potency of which cannot be adequately* tested by chemical means.

15 & 16
Geo. 5. c. 611.

(2) In the case of any such substance as aforesaid which is a substance to which the Therapeutic Substances Act, 1925, applies, this Part of this Act shall apply thereto in so far only as the substance is excluded from the operation of that Act, as being intended to be used solely for veterinary purposes, by regulations made under paragraph (g) of subsection (1) of section five of that Act.

Power to
make regu-
lations as to
substances
to which
Part II
applies.

12.—(1) The Minister may make orders for the following purposes :—

- (a) for adding to the First Schedule to this Act any therapeutic substance capable of being used for veterinary purposes, the purity or potency of which cannot be adequately tested by chemical means;
- (b) for prohibiting, except under a licence for the purpose issued by the Minister and in accordance with any conditions subject to which the licence is issued, the manufacture for sale or the

PART II.
—cont.

importation into Great Britain of any such substance to which this Part of this Act applies as may be specified in the order;

- (c) for prescribing the standard of strength, quality and purity of any substance in respect of which an order made for the purpose last aforesaid is in force;
- (d) for prescribing the tests to be used for determining whether the standard prescribed as aforesaid has been attained;
- (e) for prescribing units of standardisation;
- (f) for prescribing the form of licences and of applications therefor, and of notices to be given in connection therewith;
- (g) for prescribing the conditions subject to which licences may be issued, including, in the case of a licence to manufacture, conditions that the manufacture shall be carried on only upon the premises specified in the licence and that the licensee shall allow any inspector authorised by the Minister in that behalf to enter any premises where the manufacture is carried on, and to inspect the premises and plant and the process of manufacture and the means employed for standardising and testing the manufactured substance and to take samples thereof;
- (h) for prescribing any other matter which under this Part of this Act is to be prescribed.

(2) The Minister may make orders as respects any such substance to which this Part of this Act applies as may be specified therein—

- (a) requiring that, if advertised or sold as a proprietary medicine or contained in such medicine,
* such accepted scientific name or name descriptive of the true nature or origin of the substance as may be prescribed shall appear on the label;
- (b) requiring that the date of the manufacture shall be stated in the prescribed manner on all vessels or other packages in which the substance is sold or offered for sale, and prohibiting the sale of the substance after the expiration of the prescribed period from the date of manufacture;

PART II.
—*cont.*

- (c) prohibiting the sale or the offering for sale or the importation of the substance otherwise than in a vessel or other container of such character as may be prescribed, and requiring that the prescribed label or other description shall be affixed to such vessel or container.

Licences to
manufac-
ture.

13.—(1) The following provisions shall have effect with respect to licences to manufacture for sale a substance the manufacture of which otherwise than under a licence is prohibited by an order, that is to say—

- (a) the licence shall be issued subject to such conditions as may be prescribed, may extend to all such substances or to such one or more of them as may be specified in the licence, shall continue in force for such period as may be prescribed, but may from time to time be renewed for a like period ;
- (b) an applicant for a licence or the renewal of a licence must satisfy the Minister that the conditions under which the substance is to be manufactured by him and the premises in which it is to be manufactured are such as to comply with any order in force for the purposes of the last foregoing section, and an applicant who so satisfies the Minister shall be entitled to the grant or renewal of the licence ;
- (c) the Minister may revoke a licence or suspend it for such period as he thinks fit, if in his opinion the licensee has failed to comply with the conditions subject to which the licence was issued or with any such order as aforesaid as to the prescribed standards of strength, quality and purity, and such revocation or suspension may apply to all the substances to which the licence extends or to some one or more of them :

Provided that a person who is aggrieved by the revocation or suspension of his licence may, subject to rules of court, appeal to the court, whose decision shall be final.

(2) Nothing in any order prohibiting or regulating the manufacture for sale of any substance to which

this Part of ~~this~~ Act applies shall apply to the preparation by a registered veterinary surgeon for the treatment of any animal or poultry under his care, or for and at the request of another such surgeon, of any such substance, if it is specially prepared with reference to the condition and for the treatment of an individual animal or bird.

PART II.
—*cont.*

(3) In this section, the expression “the court” means, as respects England, the High Court and, as respects Scotland, the Court of Session, and the expression “registered” means registered in pursuance of the Veterinary Surgeons Act, 1881, either in the register of veterinary surgeons or in the register of existing practitioners. 44 & 45 Vict.
c. 62.

14. The issue of a licence to import a substance the importation of which otherwise than under a licence is prohibited by an order shall be subject to such conditions, including conditions as to the strength, quality and purity of the substance and as to the suspension or revocation of the licence, as may be prescribed. Licences to
import.

15. If any person—

- (a) contravenes or fails to comply with any condition subject to which any such licence as aforesaid is issued;
- (b) sells or offers for sale or has in his possession for sale any substance to which this Part of this Act applies knowing it to have been manufactured or imported in contravention of an order in force for any of the purposes of section twelve of this Act;
- (c) contravenes or fails to comply with the provisions of any such order as aforesaid;

Offences
under
Part II.

he shall be guilty of an offence against this Part of this Act and liable on summary conviction to a fine not exceeding fifty pounds or, in the case of a second or subsequent conviction, to such a fine or to imprisonment with or without hard labour for a time not exceeding two months, and in either case to forfeit any goods in connection with which the offence was committed, and without prejudice, if the offender is the holder of a licence, to the power of the Minister to revoke or suspend the licence.

PART II.
—*cont.*
Expenses of
Part II.

16. Any costs and expenses incurred by the Minister in the execution of this Part of this Act shall be defrayed out of moneys provided by Parliament.

PART III.

GENERAL.

Extension
of 9 & 10
Geo. 5.
c. 91 to
Scotland.

17. Part I of the Ministry of Agriculture and Fisheries Act, 1919, shall extend, and shall be deemed always to have extended, to Scotland, and accordingly in subsection (2) of section eleven of the said Act (which provides that the said Act shall not extend to Scotland or Ireland), the words “Scotland or” shall be omitted and at the end of the subsection there shall be inserted the words “and Parts II and III of this Act shall not extend to Scotland.”

Interpreta-
tion.

18. In this Act, unless the context otherwise requires, the following expressions have the meanings hereby assigned to them respectively, that is to say:—

57 & 58 Vict.
c. 57.

“The principal Act” means the Diseases of Animals Act, 1894;

“The Minister” means the Minister of Agriculture and Fisheries, and “the Ministry” has a corresponding meaning.

Short title,
citation,
construc-
tion, repeal
and extent.

19.—(1) This Act may be cited as the Diseases of Animals Act, 1935, and this Act and the Diseases of Animals Acts, 1894 to 1927, may be cited together as the Diseases of Animals Acts, 1894 to 1935.

(2) Save as respects Northern Ireland, this Act (except section seventeen thereof) shall be construed as one with the principal Act.

(3) The enactments mentioned in the Second Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule.

10 & 11
Geo. 5. c. 67.

(4) This Act shall not extend to Northern Ireland, and for the purposes of the Government of Ireland Act, 1920, the enactment of legislation for purposes similar to the purposes of Part II of this Act shall not be deemed to be beyond the powers of the Parliament of Northern Ireland by reason only of the restriction of those powers mentioned in section four of the said Act.

SCHEDULES.**FIRST SCHEDULE.**Sections 11
and 12.**THERAPEUTIC SUBSTANCES TO WHICH PART II
OF THIS ACT APPLIES.**

(1) The substances commonly known as vaccines, sera, toxins, antitoxins and antigens.

(2) The substance commonly known as salvarsan (Dioxy-diamino-arseno-benzol-di-hydrochloride) and analogous substances used for the specific treatment of infective disease.

(3) Extract of the pituitary body.

SECOND SCHEDULE.

Section 19.

ENACTMENTS REPEALED.

Session and Chapter.	Short Title.	Extent of Repeal.
57 & 58 Vict. c. 57	The Diseases of Animals Act, 1894.	In the Third Schedule, in Part II, in paragraph 5, the words "and to compensation or other payment in respect of animals so slaughtered."
1 & 2 Geo. 5. c. 11	The Poultry Act, 1911	The whole Act.
13 Geo. 5. c. 5	The Importation of Animals Act, 1922 (Session 2).	Section five.
15 & 16 Geo. 5. c. 30	The Importation of Pedigree Animals Act, 1925.	In section one, subsection (3).